

Legal Representatives' Suits Act, 1855

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Union of India - Act

Legal Representatives' Suits Act, 1855

UNION OF INDIA

India

Legal Representatives' Suits Act, 1855

Act 12 of 1855

Published on 27 March 1855

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Legal Representatives' Suits Act, 1855

(Act

No. 12 of 1855

)

Last Updated 8th January, 2020

[27th March, 1855.]

1.

Short title given by the Indian Short Titles Act, 1897 (14 of 1897).

This Act has been declared to be in force in the whole of India, except Part B States and the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.

The Act has been extended to and brought into force in Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and the First

Schedule (w. e. f. 1-7-1965) and to the Union Territory of Pondicherry by Act 26 of 1968, s. 3, and the Schedule.

The Act came into force in the State of Sikkim on 1-9-1984 vide Notification No. S. O. 653(E), dated 24-8-1984.

It has also been declared in force in the Khondmals District by the Khondmals Laws Regulation, 1936 (4 of 1936), s. 3 and the Schedule.; in the Angul District by the Angul Laws Regulation, 1936 (5 of 1936), s. 3 and Schedule; and in the Sonthal Parganas by the Sonthal Parganas Settlement Regulation, 1872 (3 of 1872), s. 3.

It has been declared, by notification under s. 3(a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely: -

West Jalpaiguri

See Gazette of India,

1881, Pt. I, p. 74.

The Districts of Hazaribagh, Lohardaga (now the

Ranchi District, see Calcutta Gazette, 1899, Pt. I, p. 44), and

Manbhum, and Pargana Dhalbhum and the Kolhan in the District of Singhbhum.

Ditto

1881, Pt. I, p. 504.

The Scheduled portion of The Mirzapur District .

Ditto

1879, Pt. I, p. 383.

Jaunsar Bawar .

Ditto

1879, Pt. I, p. 382.

The District of Lahaul

Ditto

1886, Pt. I, p. 301.

The Scheduled Districts of the Madhya Pradesh .

Ditto

1879, Pt. I, p. 771.

The Scheduled Districts in Ganjam and

Vizagapatam

Ditto

1898, Pt. I, p. 870.

Assam (except the North Lushai Hills)

Ditto

1897, Pt. I, p. 299.

The Porahat Estate in the Singhbhum District

Ditto

1897, Pt. I, p. 1059.

It has been extended, by notification under s. 5

of the last-mentioned Act, to the following Scheduled Districts, namely:-

Kumaon and Garhwal .

See Gazette of India,

1876, Pt. I, p. 606.

The Tarai of the Province of Agra

Ditto

1876, Pt. I, p. 505.

It has been extended to the New Provinces and Merged States, see Act 59 of 1949, and to the States of Tripura, Manipur and Vindhya Pradesh, see Act 30 of 1950.

[An Act to enable Executors, Administrators or Representatives to sue and be sued for certain wrongs.]

[See the Civil Procedure Act, 1833 (3 & 4 Will. 4, c. 42), s. 2.]

Preamble. - Whereas it is expedient to enable executors, administrators or representatives in certain cases to sue and be sued in respect of certain wrongs which, according to the present law, do not survive to or against such executors, administrators or representatives; It is enacted as follows: -

1. Executors may sue and be sued in certain cases for wrongs committed in lifetime of deceased.

- An action may be maintained by the executors, administrators or representatives of any person deceased, for any wrong committed in the time of such person, which has occasioned pecuniary loss to his estate, for which wrong an action might have been maintained by such person, so as such wrong shall have been committed within one year before his death [***]

[The words 'and provided such action shall be brought within one year after the death of such person' rep. by Act 9 of 1871, s. 2 and the First Schedule, see now the Indian Limitation Act, 1963 (36 of 1963

).]

; and the damages, when recovered, shall be part of the personal estate of such person;

and further, an action may be maintained against the executors or administrators or heirs or representatives of any person deceased for any wrong committed by him in his lifetime for which he would have been subject to an action, so as such wrong shall have been committed within one year before such person's death [***]

[The words 'and so as such action shall be commenced within two years after the committing of the wrong' rep. by s. 2 and the First Schedule, ibid, see now Act

36 of 1963

.]

and the damages to be recovered in such action shall, if recovered against an executor or administrator bound to administer according to the English law, be payable in like order of administration as the simple contract debts of such person.

2.

Death of either party not to abate suit. Proviso.

- No action commenced under the provisions of this Act shall abate by reason of the death of either party, but the same may be continued by or against the executors, administrators or representatives of the party deceased: Provided that, in any case in which any such action shall be continued against the executors, administrators or representatives of a deceased party, such executors, administrators or representatives may set up a want of assets as a defence to the action, either wholly or in part, in the same manner as if the action had been originally commenced against them.

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